

material to the disposition of this motion. (Code of Civil Procedure section 473c(q).)

Objection 18 is sustained.

6. 9:00 AM CASE NUMBER: C22-01601
CASE NAME: CLAYTON VALLEY SHOPPING CENTER, LLC, A CALIFORNIA LIMITED LIABILITY COMPANY VS. MATT DELIMA
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE FRANK D. PRESTO III**
FILED BY: KNM CLAYTON, LLC
TENTATIVE RULING:

Summary

This tentative ruling applies to Lines 6, 7 and 8. After review of the moving papers, and declarations of Counsel Frank D. Presto III, who is Counsel of Record for Defendants Matt Delima, Jason Haugen, and KNM Clayton, LLC's, the Court finds good cause to grant his Motion to be Relieved as Counsel of Record for Defendants. Mr. Presto's Motions to Be Relieved as Counsel of Record for Matt Delima, Jason Haugen and KNM Clayton LLC are **granted**.

The Court will execute the three proposed orders lodged with the Court on March 12, 2026. Counsel is ordered to provide notice of the Trial Readiness Conference and Jury Trial scheduled for May 5 and May 18, 2026 to his former clients. No appearance is required at the hearing on April 29, 2026.

7. 9:00 AM CASE NUMBER: C22-01601
CASE NAME: CLAYTON VALLEY SHOPPING CENTER, LLC, A CALIFORNIA LIMITED LIABILITY COMPANY VS. MATT DELIMA
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE FRANK D. PRESTO III**
FILED BY: HAUGEN, JASON
TENTATIVE RULING:

See Line 6, above.

8. 9:00 AM CASE NUMBER: C22-01601
CASE NAME: CLAYTON VALLEY SHOPPING CENTER, LLC, A CALIFORNIA LIMITED LIABILITY COMPANY VS. MATT DELIMA
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE FRANK D. PRESTO III**
FILED BY: DELIMA, MATT
TENTATIVE RULING:

See Line 6, above.

9. 9:00 AM CASE NUMBER: C22-01852
CASE NAME: MANSOUR BOROUMAND VS. MOJGAN SHAHBAZI
*HEARING ON MOTION IN RE: LEAVE TO FILE AN AMENDMENT TO ANSWER (ADVANCED FROM 8/19/26)
FILED BY: SHAHBAZI, MOJGAN
TENTATIVE RULING:

Parties to appear. Defendants Mojgan Shahbazi, Matthew Gheisari, and Oakley Road Holdings, LLC, bring this motion to file an amended answer to the complaint of plaintiff Mansour Boroumand, who opposes the motion. Because defendants have failed to comply with the California Rules of Court, rule 3.1324, parties shall appear to discuss next steps.

Background and Discussion

On August 31, 2022, plaintiff brought suit alleging causes of action for breach of contract and cancellation of instrument. Plaintiff claims to own 50% of defendant, Oakley Road Holdings, LLC, which, in turn, owns a real estate parcel in the City of Oakley. Plaintiff's ownership interest is alleged to derive from a loan of \$950,000 made by plaintiff to the LLC. The loan was memorialized in a Convertible Promissory Note, which was subsequently converted via a Note Conversion Agreement into Plaintiff's alleged 50% ownership interest. Defendants answered and cross-complained on October 24, 2022. They twice filed amended cross-complaints before dismissing the Second Amended Cross-Complaint in August of 2023.

On March 11, 2026, defendants filed this motion to file "an amendment" to their answer. A jury trial is currently set for June 1, 2026, just less than five weeks from the hearing on this motion.

The motion is supported by a Declaration of Christopher J. Dyas, defendants' counsel. The declaration states that Mr. Dyas first became involved in the action in 2024 and, since that time, has discussed the "new" defenses at issue here with each of the three attorneys that have represented plaintiff since Mr. Dyas' involvement.

Defendants seek leave to add *unspecified text* in order to:

- (1) "clarify" that their Ninth Affirmative Defense, which alleges failure of consideration because plaintiff failed to transfer the real property, encompasses plaintiff's failure to transfer money as well;
- (2) to assert a failure of consideration in connection with the Note Conversion Agreement because its sole consideration was the Promissory Note, which defendants contend is void and invalid because of its failure of consideration; and,
- (3) to assert the Note Conversion Agreement was never signed by defendants, and that their purported signatures were forged.

(Memorandum of Points and Authorities in Support of Motion, 3:18-4:2)

Plaintiff's opposition does not dispute the policy generally favoring amendment, but plaintiff argues in this case it would be unjust based on the sham pleading doctrine. Plaintiff specifically takes issue with the forgery assertions, pointing to the cross-complaint, as well as the amended and second amended cross-complaints, in which defendants pleaded that they signed the Note Conversion Agreement. Plaintiff additionally notes that counsel Dyas was the one to sign the Second Amended Cross-Complaint in July of 2023, significantly earlier than Dyas states he was involved in the litigation.